

VCU328832 Alvarado, Blanca vs. Caltrans

County: tulare

Division: Civil Law and Motion

Department: 1

Hearing date: 2026-07-02

Motion: (1) Kaweah's Demurrer; (2) Plaintiff's Motion re: Section 474 Doe Amendment

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Re: Alvarado, Blanca vs. Caltrans

Case No.: VCU328832

Date: July 2, 2026

Time: 8:30 A.M.

Dept. 1-The Honorable David C. Mathias

Motion: (1) Kaweah's Demurrer; (2) Plaintiff's Motion re: Section 474 Doe Amendment

Tentative Ruling: (1) To sustain the demurrer with leave to amend; Plaintiff is ordered to file an amended complaint no later than ten (10) days from the date of this hearing; (2) To deny the motion

(1) Kaweah's Demurrer

Facts

In this matter, Plaintiff sues Defendants Caltrans and Kaweah Delta under "common counts" for injuries sustained while falling outside of Kaweah Delta Hospital on June 13, 2025. Plaintiff filed this lawsuit December 5, 2025.

The complaint does not identify Defendant Kaweah as a public entity and does not state that Plaintiff has complied with the claim presentation statute or been excused from complying.

On April 17, 2026, Defendant Kaweah filed this demurrer and request for judicial notice of Kaweah's Certificate of Filing with California Secretary of State. Kaweah demurs on the basis that the complaint fails to allege compliance with the claim presentation requirements.

No opposition appears to have been filed.

Authority and Analysis

The purpose of a demurrer is to test whether a complaint “states facts sufficient to constitute a cause of action upon which relief may be based.” (Young v. Gannon (2002) 97 Cal.App.4th 209, 220. To state a cause of action, a plaintiff must allege facts to support his or her claims, and it is improper and insufficient for a plaintiff to simply plead general conclusions. (Careau v. Security Pacific Business Credit, Inc. (1990) 222 Cal.App.3d 11371, 1390.) The complaint must contain facts sufficient to establish every element of that cause of action, and thus a court should sustain the demurrer if “the defendants negate any essential element of a particular cause of action.” (Cantu v. Resolution Trust Corp. (1992) 4 Cal.App.4th 857, 879-80)

To determine whether the complaint states facts sufficient to constitute a cause of action, the trial court may consider all material facts pleaded in the complaint and those that arise by reasonable implication therefrom; it may not consider contentions, deductions, or conclusion of fact or law (Moore v. Conliffe (1994) 7 Cal.4th 634, 638.)

It is well-settled that all well-pled material facts in the complaint are assumed to be true for the purpose of the demurrer. (C & H Foods v. Hartford Ins. Co. (1984) 163 Cal.App.3d 1055, 1062) But “doubt in the complaint may be resolved against plaintiff and facts not alleged are presumed not to exist. (Id.)

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) No other extrinsic evidence can be considered (i.e., no “speaking demurrers”). (Ion Equip. Corp. v. Nelson (1980) 110 Cal.App.3d 868, 881.)

Judicial Notice

The request for judicial notice provides a copy of a certificate of filing with the Secretary of State for California. “A court may take judicial notice of documents in its own records and those reflecting the official acts of local and state agencies, including resolutions, minutes, and agendas. (Evid. Code, § 452, subds. (c), (d), (h); see Associated Builders & Contractors, Inc. v. San Francisco Airports Com. (1999) 21 Cal.4th 352, 375, fn. 4)” (Julian Volunteer Fire Co. Assn. v. Julian-Cuyamaca Fire Protection Dist. (2021) 62 Cal.App.5th 583, 600.)

Under Elmore v. Oak Valley Hospital Dist. (1988) 204 Cal.App.3d 716, 721, the statement filed with the Secretary of State become a public record and a document of which the court may properly take judicial notice. The Court therefore takes judicial notice of this document, as well as the “facts that can be deduced, and/or clearly derived from, its legal effect, such as the names and dates contained in the document, and the legal consequences of the document.” (Julian Volunteer Fire Co. Assn, supra, 62 Cal.App.5th at 60

Therefore, the Court finds Kaweah has established it is a public entity.

Government Tort Claims Act Compliance

Defendant Kaweah brings this motion chiefly on the grounds that Plaintiff’s complaint has not demonstrated compliance with the Government Tort Claims Act and that it is now too late to comply.

California Government Code section 911.2 requires that such a claim be presented to the relevant public entity not more than six months after the accrual of the cause of action. Presentation of such a claim is a condition precedent to filing a suit against the public entity. (Cal. Govt. Code, § 945.4.) If the injured party fails to file a timely claim, “a written application may be made to the public entity for leave to present such claim.” (Cal. Govt. Code, § 911.4, subd. (a).) The deadline to apply to for leave to present a late claim is a reasonable time not to exceed one year. (Cal. Govt. Code, § 911.4, subd. (b).)

Important here, compliance with the presentation requirement must be stated in the complaint. (Dilts v. Cantua Elementary School Dist. (1987) 189 Cal.App.3d 27, 31 [holding “In those circumstances in which a claim must be presented, the plaintiff must allege compliance or circumstances excusing compliance, or the complaint is subject to general demurrer.”].)

Here, there is no statement of compliance with the Act in the complaint.

As such, the Court sustains the demurrer.

A demurrer cannot be sustained without leave to amend where it appears that the facts alleged establish a cause of action under any possible legal theory or it is reasonably possible that the plaintiff can amend the complaint to allege any cause of action. (Canton Poultry & Deli, Inc v. Stockwell, Harris, Widom, and Woolverton (2003) 109 Cal.App.4th 1219, 1226.)

As such, the Court grants leave to amend and orders an amended complaint filed no later than ten (10) days from the date of this hearing.

(2) Plaintiff's Motion re: Section 474 Doe Amendment

Facts

In this matter, Plaintiff sues Defendants Caltrans, Kaweah Delta and Does 1 through 10, has marked “common counts” and negligence as the causes of action, indicates Plaintiff has suffered “considerable bodily injuries” arising out of a slip and fall “just outside the entrance to the Visalia Kaweah Delta Hospital” that occurred “On before June 13, 2025.”

Further “Based upon the foregoing, evaluation and investigation of this matter, it is apparent that Delta Hospital and does, Caltrans, 1-10 was 100% at fault in causing me extreme financial hardship.”

The complaint attaches a claim for damages submitted to the City of Visalia on July 25, 2025 related to the incident described above.

The complaint further a letter from the City of Visalia stating “The claim you filed against the City of Visalia, referenced above, is misdirected. The City of Visalia is a separate public entity from Caltrans. Accordingly, you must file your claim with that entity.”

Via this motion, Plaintiff seeks to substitute Defendant City of Visalia as to Doe 1 pursuant to Code of Civil Procedure section 474.

In support, Plaintiff declares that:

8. Shortly after the incident, I was not represented by an attorney. I was acting in propria persona—representing myself—without any legal training or education. I did not consult with a lawyer before taking the steps described below.

9. On or about July 25, 2025, I completed and signed a Claim for Damages form and submitted it to the City of Visalia's Risk Management Division. I filed this claim because the intersection where my injury occurred is physically located within the City of Visalia's municipal boundaries, and it seemed like the natural and obvious step for me to take. I understood at that time

only that I had been injured at a location within the City's limits, and I believed the City might have some involvement, but I did not understand the specific legal basis for the City's liability or the City's particular role with respect to the storm drain catch basin inlet, signage, or the conditions at the intersection.

10. On September 29, 2025, I received a letter from the City of Visalia's Risk Management Division. The letter was signed by Andrew Guzman, Risk Manager. The letter stated that my claim was "misdirected" and that "the City of Visalia is a separate public entity from Caltrans." The letter further stated: "Accordingly, you must file your claim with that entity." The letter characterized any effort to involve the City of Visalia as "unmeritorious and frivolous" and warned that the City might seek to recover costs of defense pursuant to Code of Civil Procedure sections 128.5 and 1038. The letter also informed me that my claim had been rejected by operation of law and that I had six months from the date of the notice to file a court action, citing Government Code section 945.6.

...

12. On December 5, 2025, I filed a civil Complaint in the Superior Court of California, County of Tulare, Visalia Courthouse. I prepared and filed this Complaint by myself, without the assistance of an attorney. In my Complaint, I named Caltrans and Kaweah Delta Hospital as defendants, along with Doe defendants 1 through 10.

...

14. I included Doe defendants 1 through 10 in my Complaint because I understood, based on my limited knowledge of the legal process, that there might be additional parties who bore responsibility for my injuries whose identities or specific roles I did not yet know. At the time of filing, I was genuinely ignorant of the specific facts establishing the City of Visalia's independent liability in connection with the storm drain catch basin inlet and the conditions at the intersection.

15. I want to be clear about what I knew and did not know at the time I filed my Complaint. I knew that the intersection where I was injured was located within the City of Visalia. I knew that I had filed a government tort claim with the City as a precaution, because the incident occurred within the City's boundaries. However, I did not know that the City of Visalia had independent control and authority over the placement of warning signage at the intersection or that the City had the authority to relocate or modify the storm drain catch basin inlet to remove it from the pedestrian path of travel. I did not know the specific facts that gave rise to a cause of action against the City distinct from and in addition to any claim against Caltrans. The City's own rejection letter confirmed my misunderstanding by telling me my claim against the City was misdirected and frivolous."

Based on the above, Plaintiff argues ignorance as to the identify of the City of Visalia and ignorant of the facts giving rise to the cause of action against the City of Visalia.

Authority and Analysis

When a Plaintiff amends a complaint to add a new defendant, "the general rule is that [the] amended complaint ... does not relate back to the date of filing the original complaint and the statute of limitations is applied as of the date the amended complaint is filed, not the date the original complaint is filed." (Woo v. Superior Court (1999) 75 Cal.App.4th 169, 176.) "A recognized exception to the general rule is the substitution under [Code of Civil Procedure] section 474 of a new defendant for a fictitious Doe defendant named in the original complaint as to whom a cause of action was stated in the original complaint." (Id.)

"Code of Civil Procedure section 474 permits a plaintiff to amend complaints by adding parties as Doe defendants when the plaintiff is ignorant of the name of a defendant at the time the complaint is filed. The purpose of section 474 is to enable a plaintiff to avoid the bar of the statute of limitations when he or she is ignorant of the identity of the defendant. The cases discussing section 474 deal with whether the plaintiff was truly ignorant of the identity of the person brought into the case as a Doe defendant because if that requirement is met, the amendment to the complaint relates back to the date the complaint

was filed and the statute of limitations is preserved.” (Davis v. Marin (2000) 80 Cal.App.4th 380, 386–387.)

“Section 474 contains two mandatory requirements, each of which must be met before the benefits of the statute may be claimed by a plaintiff. The first requirement is that of ignorance of the true name of the defendant. There are not many instances in the law where absolute ignorance is vital and may serve to advance a litigant's cause, but section 474 contains one. The decided cases have made it clear that a plaintiff's ignorance, to satisfy the statute, must be genuine, that is, real and not feigned. [Citations]... [¶] The second requirement of section 474 is that a plaintiff make a clear statement in his pleading that he is ignorant of the true name of the defendant sued by a fictitious name. [Citation]” (Stephens v. Berry (1967) 249 Cal.App.2d 474, 477.)

“‘Section 474...is restricted to the knowledge of the plaintiff at the time of the filing of the complaint.’ [Citations] ‘The lack of knowledge of the true name of the defendant...must be ‘real and not feigned.’ [Citation.]... ‘Ignorance of the facts is the critical issue, and whether it be due to misinformation or negligence is not relevant.’ [Citations.]’ [Citations] Under section 474, therefore, a plaintiff has no duty ‘to exercise reasonable diligence prior to filing the complaint to discover the defendant's identity.’ [Citation]” (Balon v. Drosi (1993) 20 Cal.App.4th 483, 487-488.)

The Court, starts with the statement in Fuller v. Tucker (2000) 84 Cal.App.4th 1163, 1172:

“...the normal situation for which the fictitious name statute, Code of Civil Procedure section 474, is designed: when the plaintiff is ignorant of the name of ‘a defendant,’ the plaintiff must file suit against the known wrongdoers, and, when the Doe's true name is discovered, the complaint may be amended accordingly. (Code Civ. Proc., § 474.)”

The “duty to investigate” or “diligence” that is relevant to the statute of limitations discussions “is not relevant to whether a Doe amendment is timely. (Code Civ. Proc., § 474.); Although it is true that a plaintiff's ignorance of the defendant's name must be genuine (in good faith) and not feigned [citations] and that a plaintiff need not be aware of each and every detail concerning a person's involvement before the plaintiff loses his ignorance [citations], it is equally true that the plaintiff does not relinquish her rights under section 474 simply because she has a suspicion of wrongdoing arising from one or more facts she does know. [Citations.]’ [citation omitted] Code of Civil Procedure ‘[s]ection 474 allows a plaintiff in good faith to delay suing particular persons as named defendants until [plaintiff] has knowledge of sufficient facts to cause a reasonable person to believe liability is probable.’ [citation omitted] ‘[S]ection 474 does not impose upon the plaintiff a duty to go in search of facts she does not actually have at the time she files her original pleading. [Citation.]’[citation omitted]” (Id. at 1172.)

The Fuller court applied these principles to its own case, noting first that the trial court incorrectly obligated the plaintiff to make a reasonable inquiry to discover the identity of the wrongdoer and the connection not the injury under a statute of limitations analysis. (Id. at 1172-1173.) The Fuller court noted that no evidence was presented that the plaintiff heard the doe doctor's name during surgery. (Id. at 1173.) Further, the Fuller court noted that the mere existence of the doe doctor's name in the medical records, without proof that the plaintiff had these records, did not prevent relation back to the initial filing of the complaint. (Id.) “In order for [the doe doctor] to successfully argue that the Doe amendment was untimely, he had to prove that even if [plaintiff] knew his identity, [plaintiff] also knew facts giving rise to a cause of action against [the doe doctor].” (Id.)

Here, the Court cannot find that Plaintiff truly ignorant as to the identity of the City of Visalia nor that Plaintiff was truly ignorant of the facts to cause a reasonable person to believe liability was probable based on the timely presentation of a government claim against the City of Visalia and that the incident is alleged to have occurred, via the allegations stated in the claim, when Plaintiff's foot became stuck “on the storm sewer Drainage [sic].” Further, the attachments to the complaint appear to indicate the injury took place on the corner of a two public streets.

Therefore, the Court denies the motion.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion

matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.